

Delaware County Commissioners Meeting - October 5th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=-dszT9_xFUU
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Delaware County Commissioners Meeting Summary

Meeting Date: October 5, 2026

Body: Delaware County Commissioners

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Statutory Public Hearing #1 [00:07:17](#) <U+2013> Transfer of tax sale certificates to non-profits.
 - **Summary of Discussion:** The board opened the public hearing to consider the transfer of tax sale certificates. The county attorney read the list of properties into the record, which included addresses on West 1st Street, South Proud Street, East Kirk, East Hines, East Faulner, East Kirby, East Willard, South Wolf, South Brady, East Columbus, and others. No members of the public stood to comment.
 - **Action & Vote Disposition:** Motion to close the public hearing passed by roll call vote (Commissioner Henry: Yes, Commissioner Brand: Yes, Commissioner Reagan: Yes).
- **Session Type & Topic:** Statutory Public Hearing #2 [00:09:30](#) <U+2013> Application to the Indiana Office of Community and Rural Affairs (OKRA) for a State Community Development Block Grant (CDBG).

- **Summary of Discussion:** Melissa Norby and Greg Bimemer of KleinPEter Consulting Group, alongside Bill Walters of the East Central Indiana Regional Planning District, presented a request to apply for a \$500,000 grant for an owner-occupied rehabilitation program, supported by an \$87,000 local match from EDIT funds. The program provides up to \$25,000 per eligible rural Delaware County household for roof/gutter repairs, ADA accessibility, HVAC replacement, electrical upgrades, and water heater replacement. City of Muncie residents are ineligible due to Muncie being an entitlement community. The grant application deadline is October 30, with awards announced in January 2027.
- **Item-Specific Public Input:** Residents inquired about application locations and deadlines. Officials noted an initial one-page interest form is available at Bill Walters' office (1208 West White River Boulevard, Suite 136) and will be posted on the county website.
- **Action & Vote Disposition:** Motion to close the public hearing passed by roll call vote (Commissioner Brand: Yes, Commissioner Henry: Yes, Commissioner Reagan: Yes).

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the regular Delaware County Commissioners meeting on October 5, 2026, at 9:12 AM [00:16:59](#).
- **Attendance:**
 - **Present:** Commissioner Henry, Commissioner Brand, Commissioner Reagan (Presiding Officer) [00:17:34](#)
 - **Absent:** None

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Recitation of the Pledge of Allegiance [00:17:16](#).
- **Approval of Minutes:** Motion to approve the minutes of the September 21 meeting [00:20:12](#) passed by roll call vote (Commissioner Reagan: Yes; remaining votes affirmative).

4. Substantive Business & Board Action

- [00:17:41](#) **Board Appointment:** Health Department Board Recommendation
 - **Sponsor / Presenter:** County Staff / Board
 - **Deliberation Summary:** The board reviewed remaining names forwarded by the mayor after one nominee was appointed elsewhere. Mr. Dan Gibson was

recommended to fill a required Democratic appointee position given his legal experience and party affiliation confirmed by the clerk's office.

- **Action & Vote Disposition:** Approved by roll call vote (Commissioner Henry: Yes, Commissioner Brand: Yes, Commissioner Reagan: Yes).
- **00:18:56 Table Business:** Priest Ford Bridge Conveyance Request (Brendan Cook)
 - **Sponsor / Presenter:** Commissioner Brand
 - **Deliberation Summary:** The board addressed an old request from Brendan Cook to convey the Priest Ford Bridge. Because the county does not own all surrounding land and Mr. Cook had not accumulated the required adjacent property as previously instructed, the board moved to clear it from the agenda.
 - **Action & Vote Disposition:** Denied request and removed from agenda by roll call vote (Commissioner Henry: Yes, Commissioner Brand: Yes, Commissioner Reagan: Yes).
- **00:20:28 Property Request:** 1943 West 8th Street (Eugene Robinson)
 - **Sponsor / Presenter:** Eugene Robinson / Commissioner Brand
 - **Deliberation Summary:** Mr. Robinson appeared for a third time requesting to purchase property at 1943 West 8th Street to clean up blight and create a garden. Commissioners noted legal counsel (Brook and Strubel) is reviewing whether the property qualifies under abutting landowner provisions, noting an alley separates the applicant's property. The board directed counsel to prioritize a determination.
 - **Action & Vote Disposition:** Placed on the table for further legal review by roll call vote (Commissioner Brand: Yes, Commissioner Henry: Yes, Commissioner Reagan: Yes).
- **00:24:42 IT Project:** Digital Sign Display Pilot Project
 - **Sponsor / Presenter:** Kyle Johnson, Office of Information GIS Services
 - **Deliberation Summary:** Proposed installing a large flat-screen TV in the county building lobby (where an ATM used to sit) as a pilot project to rotate meeting schedules, county news, job openings, weather alerts, and department notices. Cost includes ~\$400 for the TV and a \$150/year software subscription, totaling \$594, funded out of EDIT #12.
 - **Action & Vote Disposition:** Approved by roll call vote (Commissioner Henry: Yes, Commissioner Brand: Yes, Commissioner Reagan: Yes).
- **00:27:51 Property Inquiry:** Daleville Trolley Line Property / Fuller Architecture
 - **Sponsor / Presenter:** Former Commissioner Brown / Bill Walters
 - **Deliberation Summary:** Discussed historical conveyance of trolley line strips to Fuller Architecture in Daleville. It appeared a recording error may have transferred all three strips of land rather than just the single strip requested for a retention pond. The Town of Daleville is interested in one strip for a solar project.
 - **Action & Vote Disposition:** Approved motion directing staff and legal counsel to establish a chain of title, identify recording errors, and report back options by roll

call vote (Commissioner Henry: Yes, Commissioner Brand: Yes, Commissioner Reagan: Yes).

- **00:33:01 Infrastructure Project:** Boiler RFP Placeholder
 - **Sponsor / Presenter:** Commissioner Brand
 - **Deliberation Summary:** Engineering drawings for the boiler project have reached 80% completion and been submitted to legal counsel to draft an RFP. This item was maintained on the agenda as a placeholder.
 - **Action & Vote Disposition:** None (Informational placeholder).
- **00:33:40 Software Contract:** Auditor's Office Time Clock / Payroll System
 - **Sponsor / Presenter:** Auditor Carol / Commissioner Brand
 - **Deliberation Summary:** Following competitive vendor research led by Commissioner Brand, the original vendor (Right Stuff Software Corporation) resolved data-retention concerns and guaranteed historical data preservation (20-year history) with pricing lower than competing options. The contract also establishes a payroll disaster recovery plan.
 - **Action & Vote Disposition:** Motion to approve the application hosting agreement and software license agreement with Right Stuff Software passed by roll call vote (Commissioner Henry: Yes, Commissioner Reagan: Yes; Brand presumably affirmative).
- **00:37:41 Bid Opening:** Bridge 103 (500 North over Mud Creek)
 - **Sponsor / Presenter:** County Engineer Dean
 - **Deliberation Summary:** Four sealed bids were opened and read aloud:
 1. *Baty Construction Inc.* (Bogstown, IN): \$1,248,359.00
 2. *Milestone Contractors LP* (Fort Wayne, IN): \$1,230,185.88
 3. *Duncan Robertson Inc.* (Franklin, IN): \$880,292.66
 4. *Hoosier Pride Excavating* (Sulphur Springs, IN): \$878,252.00
 - **Action & Vote Disposition:** Taken under advisement for review by the County Engineer and legal team by roll call vote (Commissioner Brand: Yes, Commissioner Henry: Yes, Commissioner Reagan: Yes).
- **00:41:49 Maintenance Claim:** Jail Freezer Sprinkler Head Repair
 - **Sponsor / Presenter:** Don Chambers, Delaware County Superintendent
 - **Deliberation Summary:** Replacement of a broken fire pendant sprinkler head in the jail freezer (damaged due to icing) by Corsome totaled \$1,280.68, to be paid from EDIT #12. Door seal issues causing the icing are being coordinated with the Sheriff's Department.
 - **Action & Vote Disposition:** Approved by roll call vote (Commissioner Reagan: Yes; remaining votes affirmative).
- **00:43:15 Healthcare Contract:** Prudent RX Business Associate Addendum
 - **Sponsor / Presenter:** Commissioner Brand
 - **Deliberation Summary:** A follow-up to the recent vote canceling True RX in favor of RX Benefits and CVS. Prudent RX acts as a claims review watchdog, projected to

save the county \$180,000<U+2013>\$200,000 annually through larger rebate negotiations. There is no disruption to employees, and the agreement required signing by the following day.

- **Action & Vote Disposition:** Approved by roll call vote (Commissioner Reagan: Yes; remaining votes affirmative).
- **00:43:40 Real Estate / DCRC:** Cowan Sidewalk Project Phase 2 Warranty Deed
 - **Sponsor / Presenter:** Mr. Shley / Board
 - **Deliberation Summary:** Part of the Delaware County Redevelopment Commission (DCRC) sidewalk project in Cowan. Involves a final acquisition offer of \$3,100 and a warranty deed for \$4,625, funded out of TIF.
 - **Action & Vote Disposition:** Approved by roll call vote (Commissioner Brand: Yes, Commissioner Henry: Yes, Commissioner Reagan: Yes).
- **00:46:51 IT Infrastructure:** Network Resiliency (SD-WAN) & Disaster Recovery Site
 - **Sponsor / Presenter:** Ryan Staltz, IT Supervisor
 - **Deliberation Summary:**
 1. *SD-WAN Project:* Combines building networks into a software-defined network for seamless failover between AT&T and Comcast (\$29,457.60 from 2026 EDIT Fund 11).
 2. *Secondary Production / Disaster Recovery Site:* Establishes secondary servers at the Justice Center to replicate data and provide backup paths (\$150,543.90 total cost, split into \$55,543.90 from 2026 EDIT and \$95,000 not-to-exceed from 2027 EDIT to preempt memory price increases). Reviewed and endorsed by the IT Committee.
 - **Action & Vote Disposition:** Approved by roll call vote (Commissioner Henry: Yes; remaining votes affirmative).
- **00:51:07 Ordinance 2026-020 (First Reading):** County Personnel Handbook Update
 - **Sponsor / Presenter:** Board / HR
 - **Deliberation Summary:** Updates handbook language regarding full insurance premium deductions from final pay upon separation and clarifies PTO carryover balances.
 - **Action & Vote Disposition:** Introduced by roll call vote (Commissioner Brand: Yes, Commissioner Henry: Yes, Commissioner Reagan: Yes).
- **00:51:56 Ordinance 2026-021 (First Reading):** Broadband Ready Community Designation & Procedures
 - **Sponsor / Presenter:** Board / Burton Advisors
 - **Deliberation Summary:** Establishes permit and adoption procedures for broadband development projects to secure designation as a "Broadband Ready Community" under IC 5-25-28.5. Noted that the draft will be converted to the county's traditional format by legal counsel.
 - **Action & Vote Disposition:** Introduced by roll call vote (Commissioner Reagan: Yes; remaining votes affirmative).

- **00:53:10 Ordinance 2026-15 (Second Reading):** Grass and Weeds Code Amendment
 - **Sponsor / Presenter:** Commissioner Brand
 - **Deliberation Summary:** The board noted an upcoming meeting with the Building Commissioner's office, Health Department, and legal counsel to establish a clean copy based on prior departmental feedback.
 - **Action & Vote Disposition:** Table by roll call vote (Commissioner Reagan: Yes; remaining votes affirmative).
- **00:53:49 Resolution 2026-8:** CDBG Owner-Occupied Rehab Grant Local Match
 - **Sponsor / Presenter:** Board
 - **Deliberation Summary:** Formalizes the \$87,000 local match commitment for the \$500,000 OKRA grant application discussed during the public hearing. Commissioners discussed whether to fund this from EDIT Capital (#12) or Economic Development (#4).
 - **Action & Vote Disposition:** Approved pending review and recommendation by legal counsel regarding which EDIT fund category to utilize, passed by roll call vote **00:57:30**.
- **00:57:42 Resolution 2026-9:** Establishing Delaware County Broadband Task Force
 - **Sponsor / Presenter:** Board / Burton Advisors
 - **Deliberation Summary:** Establishes a task force as part of the Broadband Ready Community initiative. Legal counsel will reformat the draft into the county's standard format.
 - **Action & Vote Disposition:** Approved by roll call vote **00:58:22**.
- **01:01:11 Liability RFP Ratification:** Property & Liability Insurance
 - **Sponsor / Presenter:** Commissioner Brand
 - **Deliberation Summary:** Formal ratification of the language in the recently issued RFP for county property insurance and liability coverage.
 - **Action & Vote Disposition:** Approved by roll call vote **01:02:04** (Commissioner Henry: Yes, Commissioner Brand: Yes, Commissioner Reagan: Yes).

5. Open Public Comment / Citizen Forum

- **01:12:06 Cheryl Swingley (Delaware County Resident):** Addressed the board regarding data centers. Expressed concern over a lack of transparency, conflicting statements by commissioners regarding data center interest and rules, and rumors surrounding a potential data center at the Academy of Model Aeronautics. Urged the commissioners and city council to enact a 12-month moratorium on data centers to update zoning documents and address trade-offs concerning electrical affordability, environmental health, and community character.
 - *Board Response:* Commissioner Brand noted a recent informative university panel on data centers that addressed myths regarding electricity and environmental

impacts, criticized rumors as destructive to community morale, highlighted ongoing public engagement (town halls and open communication), and noted upcoming AEP open houses regarding transmission lines, local income tax rate reductions, and nuclear-ready community notices.

6. Administrative Updates & Adjournment

- **Staff & Department Reports:**
 - **Veteran Service Officer Brian Wilson:** Presented Q3 quarterly report: 158 walk-ins year-to-date, 78 new POAs, 86 new claims, 16 appeals, 9 home visits, 4 nursing home visits, and participation in the Flags of Honor and Stand Down events (138 veteran attendees) [01:32:32](#).
 - **Chief Deputy Assessor Sheri Chaffen:** Read a statement opposing the implementation of mandatory time clocks for salaried, exempt professional employees, arguing it undermines salary classification, increases administrative burdens, and negatively impacts morale [01:04:42](#).
 - **HR / Administrative Updates:** Noted upcoming PERF educational meetings scheduled across various county locations (Oct 6, 8, 9) and health department flu shot availability via county insurance [01:07:55](#).
 - **Financial Approvals:**
 - Claims: \$1,877,401.15 <U+2014> Approved [01:11:04](#)
 - Credit Cards: \$18,280.60 <U+2014> Approved [01:11:20](#) (Commissioner Brand voted No)
 - ARP: \$297,469.19 <U+2014> Approved [01:11:39](#)
 - Payroll (October 7, 2026): \$1,081,069.74 <U+2014> Approved [01:11:52](#)
 - **Adjournment:** Motion to recess/adjourn [01:24:53](#) passed unanimously by roll call vote (Commissioner Henry: Yes, Commissioner Brand: Yes, Commissioner Reagan: Yes).
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